



Heard Island and McDonald Islands Fishery Management Plan 2002

made under section 17 of the

Fisheries Management Act 1991

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About this compilation

This compilation

This is a compilation of the *Heard Island and McDonald Islands Fishery Management Plan 2002* that shows the text of the law as amended and in force on 14 October 2024 (the *compilation date*).

The notes at the end of this compilation (the *endnotes*) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Part 1 Preliminary

1 Name of Management Plan

This Management Plan is the *Heard Island and McDonald Islands Fishery Management Plan 2002*.

3 Definitions

In this Management Plan:

1998–2000 Management Policy means the Heard Island and McDonald Islands Fishery Management Policy 1998–2000, first published by AFMA in February 1998 and in force from 25 February 1998 until 30 November 2001.

Act means the *Fisheries Management Act 1991*.

acting for a person means acting with the consent of, and on behalf of, the person.

agent, of the holder of a statutory fishing right, means:

- (a) a person responsible for the affairs and property of the holder under a law of the Commonwealth, a State or a Territory, including a receiver, liquidator, trustee or guardian of the holder, or an executor or administrator of the holder's estate; or
- (b) a person appointed as the holder's agent under section 34.

approved form means the form approved by AFMA for the section in which the term is used.

area of the fishery means the area described in Schedule 1.

bycatch means the incidental catch of marine life other than target species.

CCAMLR means the Commission for the Conservation of Antarctic Marine Living Resources.

certificate, for a statutory fishing right, means a certificate given under subsection 22 (2) of the Act as evidence of the grant of the statutory fishing right.

eligible person means a person who is registered as an eligible person for a grant of a statutory fishing right under section 26 of the Act.

fishery means the Heard Island and McDonald Islands Fishery.

fishing year means a period of 12 months beginning on 1 December in any year.

Heard Island and McDonald Islands Fishery means fishing for fish of a target species in the area of the fishery.

identification code, for a boat, means the identification code allocated by AFMA to the boat under section 80 of the *Fisheries Management Regulations 2019*.

Interim Management Policy means the HIMI Exploratory Fishery Interim Management Policy published by AFMA in November 1996 and in force from 2 November 1996 until 31 August 1997.

MAC means the Management Advisory Committee established under section 54 of the *Fisheries Administration Act 1991*.

nominated boat, for a holder of statutory fishing rights, means a boat whose details are entered in the Register, under section 45 of the Act, as the nominated boat for the holder of the rights.

observer means a person who is authorised by AFMA to carry out the functions of an observer under this Management Plan.

quota, for a statutory fishing right, means the amount of fish of a particular target species that may be taken, in a fishing year, under the right.

Note For the determination of the quota for a statutory fishing right, see subsection 13 (3).

RAG means the Resource Assessment Group established by AFMA to provide advice in relation to the research needs, stock status, environment and economics of Southern Ocean fisheries.

statutory fishing right means a right to take, from the area of the fishery, in each fishing year, a particular proportion of the total allowable catch of a target species.

target species means any of the following species:

- (a) a species mentioned in Schedule 2;
- (b) if AFMA makes a declaration under section 20 in relation to a species mentioned in Schedule 3 — that species.

total allowable catch, for a target species, means the total weight of fish of that species that may be taken under statutory fishing rights in a fishing year by fishing in the area of the fishery, as determined by AFMA under section 11.

trawl methods means fishing using:

- (a) demersal otter trawl gear; or
- (b) mid-water trawl gear.

Note Unless otherwise stated, a term used in this Management Plan and in the Act has the same meaning in this Management Plan as it has in the Act. The following terms are defined in subsection 4 (1) of the Act:

- AFMA
- AFZ
- Australian boat
- coastal waters
- fish
- fishing

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- fishing permit
 - officer
 - Panel
 - precautionary principle
 - processing
 - Register
 - scientific permit
 - statutory fishing right
 - take.

4 Origin of geographical coordinates

The origin of geographical coordinates used in this Management Plan is the World Geodetic System 1984 (WGS84).

5 Objectives (Act s 17 (5))

The objectives of this Management Plan are:

- (a) to manage the fishery efficiently and cost-effectively for the Commonwealth; and
- (b) to ensure that the exploitation of the resources of the fishery and the carrying on of any related activities are conducted in a manner consistent with the principles of ecologically sustainable development and the exercise of the precautionary principle, and in particular, the need to have regard to the impact of fishing activities on non-target species and the long-term sustainability of the marine environment; and
- (c) to maximise economic efficiency in the exploitation of the resources of the fishery; and
- (d) to ensure AFMA's accountability to the fishing industry and to the Australian community in management of the resources of the fishery; and
- (e) to reach Government targets for the recovery of the costs of AFMA in relation to the fishery; and
- (f) to ensure, through proper conservation and management, that the living resources of the AFZ are not endangered by over-exploitation; and
- (g) to achieve the best use of the living resources of the AFZ; and
- (h) to ensure that conservation and management measures in the fishery implement Australia's obligations under international agreements that deal with fish stocks, and other relevant international agreements.

6 Measures by which the objectives are to be attained (Act s 17 (5))

The measures by which the objectives of this Management Plan are to be attained include the following:

- (a) determining reference points for maintaining ecologically sustainable stocks of each target species;
- (b) setting the total allowable catch for each target species and each year in the fishery, as needed, to manage the species, taking account of information from the RAG, the MAC and CCAMLR on appropriate harvest levels;
- (c) granting transferable statutory fishing rights for the fishery to eligible persons;
- (d) developing and implementing a management strategy to ensure that fishing is conducted in an ecologically sustainable way;
- (e) implementing long-term management arrangements that pursue economic efficiency for the fishery;
- (g) ensuring that a fisheries assessment plan is developed and reviewed in accordance with section 9;
- (h) monitoring the impact of fishing on target species, species that are caught as bycatch, ecologically-related species and the marine environment, and implementing any related strategies that are necessary to ensure the sustainability of those species and the marine environment, and to ensure that bycatch limitations are not exceeded;
- (i) continually evaluating the mechanisms that have been put into place to monitor fishing against statutory fishing rights and the total allowable catch, and modifying those mechanisms, as necessary, to improve the monitoring;
- (j) periodically checking the accuracy and consistency of information kept in relation to the fishery;
- (k) issuing directions prohibiting the use of the fishery, or part of the fishery, during specified periods, telling the holders of statutory fishing rights about those directions, and requiring the holders to comply with the directions;
- (l) preparing an annual budget of costs associated with managing the fishery, and setting and collecting levies and fees for the fishery;
- (m) periodically evaluating whether the range and extent of management services provided by AFMA are consistent with cost-effective management;
- (n) managing fishing operations in the fishery in a way that implements relevant CCAMLR Conservation Measures and complies with other relevant international agreements.

7 Performance criteria against which measures taken may be assessed (Act s 17 (5))

- (1) The performance criteria against which the measures taken may be assessed are:
 - (a) that the target species meet the sustainable reference points set for each target species; and
 - (b) that a total allowable catch is set for each target species for each fishing year, and that (unless provision is made for corresponding reductions in subsequent years) the amount of fish that may be taken in a fishing year is not exceeded in the year; and
 - (c) that transferable statutory fishing rights are granted to eligible persons; and
 - (d) that the requirements of section 12 are met; and
 - (e) that effective strategies are in place to ensure that stocks of any depleted fish resources are being rebuilt; and
 - (f) that the catch of non-target species is reduced to, or kept at, a minimum, and below a level that will allow stocks of the species to be maintained at ecologically-sustainable levels; and
 - (g) that cost-effective and high quality research is carried out in relation to the fishery in accordance with a 5-year strategic research plan, the results of which are:
 - (i) included in the assessment process of the fishery; and
 - (ii) published in the assessment reports of the fishery; and
 - (iii) taken into consideration in determining the total allowable catch, and other management arrangements, in a fishing year; and
 - (h) that the monitoring required by the fisheries assessment plan developed under section 9 has been undertaken; and
 - (i) that data is collected and analysed in a timely manner to enable:
 - (i) evaluation of the effectiveness of the strategies to maintain or rebuild the resources of the fishery at, or to, an acceptable level; and
 - (ii) modification of those strategies; and
 - (j) that the cost-effectiveness of management is assessed periodically; and
 - (k) that the economic efficiency of the fishery is assessed periodically using economic data provided, on request, by statutory fishing right holders; and
 - (l) that the budgetary objectives of the fishery are achieved.
- (2) AFMA and the MAC must, at least once every 5 years, assess the effectiveness of the Plan including the measures taken to achieve the objectives of this Management Plan by reference to the performance criteria mentioned in subsection (1).

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- (3) AFMA must include in its annual report for a financial year a statement of the extent to which the performance criteria mentioned in subsection (1) were met in the year.
 - (4) Each year, the MAC must assess the extent to which the performance criteria mentioned in subsection (1) have been met in that year.

8 Bycatch (Act s 17 (6D))

- (1) AFMA must ensure that bycatch is reduced to, or kept at, a minimum.
- (2) AFMA must ensure that:
 - (a) the total catch of non-target species is kept below a level that will allow stocks of the species to be maintained at an ecologically sustainable level; and
 - (b) all reasonable steps are taken to minimise incidental interactions with seabirds and marine mammals; and
 - (c) the ecological impacts of fishing operations on habitats in the area of the fishery are minimised and kept below an acceptable level.

9 Fisheries assessment plan

- (1) AFMA must develop and implement a fisheries assessment plan to ensure that an adequate program of monitoring takes place in the fishery.
- (2) The fisheries assessment plan must provide for:
 - (a) an adequate program of monitoring to ensure that reliable fisheries stock estimates can be made for each target species; and
 - (b) adequate monitoring of the direct impact of the fishery on non-target species and the ecosystem in the area of the fishery; and
 - (c) the allocation, by 1 March of each fishing year, of monitoring responsibilities to statutory fishing right holders in proportion to the numbers of statutory fishing rights they are likely to hold at the beginning of that fishing year.
- (3) In developing and implementing a fisheries assessment plan, AFMA must:
 - (a) consult, and have regard to the views of, the MAC, the RAG and the holders of statutory fishing rights; and
 - (b) have regard to the 5-year strategic research plan mentioned in paragraph 7 (1) (g).

Part 2 Total allowable catch

10 Reference points

- (1) As soon as practicable after this Management Plan comes into force, AFMA must determine, for each target species, reference points that are appropriate for maintaining ecologically viable stocks of the target species and an ecologically sustainable fishery.
- (2) Each year, AFMA may review the reference points set under subsection (1) to ensure that they remain appropriate for maintaining ecologically viable stocks of the target species and an ecologically sustainable fishery.

11 Determination of total allowable catch

- (1) Before the beginning of each fishing year, AFMA must determine the total allowable catch for each species of fish for the fishing year.
- (2) Before the beginning of each fishing year, AFMA may determine a limit to the amount of any other species (including a limit that is a total for a number of species) that may be taken from the fishery in the fishing year.
- (3) Before deciding the total allowable catch and any other catch limits for a fishing year, AFMA:
 - (a) must take into account:
 - (i) the total allowable catch (if any) set by CCAMLR; and
 - (ii) the reference points determined under section 10; and
 - (b) must consult, and consider the views of, the MAC and the RAG.
- (4) Before the beginning of each fishing year, AFMA must give to the holder of each statutory fishing right a notice stating:
 - (a) the total allowable catch for the species to which the right relates for the fishing year; and
 - (b) the quota allocated to the right for the fishing year; and
 - (c) any catch limits for other species that may be taken from the fishery in that fishing year.

11A Determination of fishing capacity

- (1) AFMA must determine the minimum quota for trawl methods, expressed as a percentage of statutory fishing rights, for a fishing year.
- (2) The determination:
 - (a) may apply to one or more fishing years; and

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- (b) for a determination that applies to one fishing year, must be made before the start of that fishing year; and
 - (c) for a determination that applies to more than one fishing year, must be made before the start of the first fishing year to which it relates.
- (3) Before the beginning of each fishing year, AFMA must give to the holder of each statutory fishing right a notice stating the determined minimum quota for trawl methods.
- (4) If this provision comes into force during a fishing year, AFMA must make the determination for that fishing year within one month of this provision coming into force.

Part 3 Right to fish in the fishery

12 Who may fish in the fishery

Subject to section 15, a person may fish in the fishery only if the person:

- (a) if using trawl methods, holds, or is acting for a person who holds, the minimum quota for trawl methods as determined by AFMA under subsection 11A (1) for each trawler; and
- (b) if using non-trawl methods, holds, or is acting for a person who holds, statutory fishing rights; and
- (c) in either case, is using the boat that is nominated for those fishing rights.

NOTE: For example, if AFMA determines the minimum quota at 25.5%, a person would need to hold at least 51% to operate a second trawler.

13 Quantity of fish that may be taken

- (1) Subject to section 14, in a fishing year, a person who holds, or is acting on behalf of another person who holds, statutory fishing rights must not take from the area of the fishery an amount of fish of a target species greater than the quota allocated to those rights in relation to that species for the fishing year.
- (2) The quota allocated to a statutory fishing right for each target species and fishing year is worked out by dividing the total allowable catch for the species in the fishing year by the total number of statutory fishing rights in force for the species at the start of the fishing year.
- (3) In working out the quota allocation for a statutory fishing right in a fishing year, a statutory fishing right that is suspended under subsection 38 (1) or (3), or paragraph 98 (3) (d), of the Act is taken to be in force.
- (4) For subsection (1), a person may take fish of a target species from the area of the fishery only if, at the time the fish are taken, the person holds statutory fishing rights with a combined uncaught quota at least equal to the amount of fish taken.

14 Overcatch

- (1) This subsection applies to a person if:
 - (a) in a fishing year (the **first year**), the person takes an amount of fish of a target species that exceeds, by no more than 10 tonnes, the quota allocated to the statutory fishing rights held by the person in the fishing year; and

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- (b) at the beginning of the following fishing year (the **second year**), the person holds statutory fishing rights that would, in the absence of this section, entitle the person to take an amount of fish of that species at least equal to the amount by which the person exceeded the quota mentioned in paragraph (a).
- (2) If subsection (1) applies to a person, the person is considered, for section 13, to have taken:
- (a) during the first year, an amount of fish equal to the quota allocated to the statutory fishing rights held by the person in the first year; and
- (b) during the second year, an amount of fish, in tonnes, according to the formula:
- $$\text{amount} = (\text{1st year take} - \text{1st year quota}) + \text{2nd year take}$$
- where:
- amount** is the amount of fish, in tonnes, the person is considered to have taken in the second year.
- 1st year take** is the amount of fish, in tonnes, actually taken in the first year.
- 1st year quota** is the quota, in tonnes, allocated to the statutory fishing rights held by the person in the first year.
- 2nd year take** is the amount of fish, in tonnes, actually taken in the second year.
- (3) This subsection applies to a person if:
- (a) the person exceeds the person's quota, in the manner described in subsection (1), by more than 10 tonnes but not more than 20 tonnes; and
- (b) at the beginning of the following fishing year (the **second year**), the person holds statutory fishing rights that would, in the absence of this section, enable the person to take an amount of fish, in tonnes, at least equal to the amount computed according to the formula:
- $$\text{amount} = [3 \times (\text{1st year take} - 10 - \text{1st year quota})] + 10$$
- where:
- amount** is the amount computed according to the formula.
- 1st year take** has the same meaning as in subsection (2).
- 1st year quota** has the same meaning as in subsection (2).
- 2nd year take** has the same meaning as in subsection (2).
- (4) A person to whom subsection (3) applies is considered, for section 13, to have taken:
- (a) during the first year, an amount of fish equal to the quota allocated to the statutory fishing rights held by the person in the first year; and

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- (b) during the second year, an amount of fish, in tonnes, according to the formula:

$$\text{amount} = [3 \times (\text{1st year take} - 10 - \text{1st year quota})] + 10 + \text{2nd year take}$$

where:

amount has the same meaning as in subsection (2).

1st year take has the same meaning as in subsection (2).

1st year quota has the same meaning as in subsection (2).

2nd year take has the same meaning as in subsection (2).

- (5) This subsection applies to a person if the person exceeds the person's quota, in the manner described in subsection (1), by more than 20 tonnes.
- (6) A person to whom subsection (5) applies is considered, for section 13, during the second year, to have taken an amount of fish according to the formula set out in paragraph (4) (b).
- (7) To avoid any doubt, in a case to which subsection (5) applies the person is still considered to have taken, in the first year, the amount of fish actually taken in that year, as well as being considered to have taken an additional amount in the second year.

15 Right to use a boat for scientific research

- (1) A person may use a boat in the area of the fishery for scientific research about the fishery only if the person is, or is acting for, the holder of a scientific permit that authorises the use of the boat in the area of the fishery for that purpose.

Note 1 See section 33 of the Act about the grant of a scientific permit.

Note 2 Scientific permits may be issued under the Act to cover research that does not target target species.

- (2) However, a person who holds a scientific permit and a statutory fishing right, or statutory fishing rights, may take fish of a target species from the area of the fishery only in accordance with section 13.

Part 4 Statutory fishing rights

Division 4.1 Registration of eligible persons for grant of statutory fishing rights

16 Conditions for registration — Schedule 2 target species (Act s 26)

- (1) Subsection (2) applies if AFMA publishes a notice, under section 24 of the Act, declaring that AFMA intends to grant statutory fishing rights for the target species mentioned in Schedule 2.
- (2) The conditions for registration as an eligible person for the grant of statutory fishing rights are that the person:
 - (a) applied for a permit under the Interim Management Policy or the 1998–2000 Management Policy; and
 - (b) either:
 - (i) if the person applied under 1 of the policies mentioned in paragraph (a) — met all of the essential requirements for a permit under that policy; or
 - (ii) if the person applied under both of the policies mentioned in paragraph (a) — met all of the essential requirements for a permit under either policy.

- (3) In this section:

essential requirements, in relation to either the Interim Management Policy or the 1998–2000 Management Policy, has the meaning given by that Policy.

Note 1 See section 24 of the Act about publication of a notice by AFMA declaring that AFMA intends to grant statutory fishing rights for fishing in a managed fishery.

Note 2 An application for registration as an eligible person for the grant of a statutory fishing right must be made within the period stated in a notice published under section 24 of the Act: see paragraph 25 (f), and subsection 26 (1), of the Act.

Note 3 Under subsection 26 (2) of the Act, AFMA must register as an eligible person an applicant for registration who meets the conditions for registration and who has paid the prescribed fee (if any). At present there is no prescribed fee.

Note 4 A decision under subsection 26 (2) of the Act is subject to reconsideration under section 165 of the Act: see subsection 165 (2). Application may be made to the Administrative Review Tribunal for review of a decision under section 165 of the Act: see subsection 165 (7).

Division 4.2 Grant of statutory fishing rights

17 Provisional grants — Schedule 2 target species (Act s 23)

- (1) This section applies to a person who is registered as an eligible person for the grant of statutory fishing rights for the target species mentioned in Schedule 2.
- (2) If the person did not hold a permit under either the Interim Management Policy or the 1998–2000 Management Policy, AFMA must make a provisional grant to the person of 2 700 statutory fishing rights for each target species mentioned in Schedule 2.
- (3) If the person held a permit under the Interim Management Policy, AFMA must make a provisional grant to the person of 6 000 statutory fishing rights for each target species mentioned in Schedule 2.
- (4) If the person held a permit under the 1998–2000 Management Policy, AFMA must, in addition to any grant under subsection (3), make a provisional grant to the person of 7 650 statutory fishing rights for each target species mentioned in Schedule 2.

Note See:

- (a) section 23 of the Act about the provisional grant of a statutory fishing right; and
- (b) Part 8, Division 3 of the Act about review by the statutory fishing rights Allocation Review Panel.

18 Request for grant — Schedule 2 target species (Act s 31)

- (1) AFMA may grant a statutory fishing right for a target species mentioned in Schedule 2 to a person only if:
 - (a) a notice mentioned in subsection 23 (2) of the Act stating that the person is to be granted the right is published in the *Gazette* (the ***Gazette notice***); and
 - (b) the person asks AFMA to make the grant.

Note Under subsection 23 (3) of the Act, AFMA must not grant a statutory fishing right:

- (a) until the end of the period within which applications may be made to the Panel for review of provisional grants; or
 - (b) if an application has been made to the Panel — before the application has been dealt with by the Panel or otherwise disposed of.
- (2) If the person does not make the request within 30 days after the Gazette notice is published, AFMA must send a notice (the ***reminder notice***) to the person telling the person that the person must make the request within a period stated in the notice.
 - (3) If the person does not make the request within the period stated in the reminder notice, AFMA must send another notice (the ***final notice***) to the

person stating that the person's registration will be cancelled if the person does not, within 14 days after the final notice is sent:

- (a) make the request; and
 - (b) explain why the person did not make the request within the period stated in the reminder notice.
- (4) AFMA must cancel the person's registration as an eligible person if, despite a final notice, the person does not:
- (a) make the request within 14 days after the final notice is sent; and
 - (b) satisfy AFMA that the person had a reasonable excuse for not making the request within the period stated in the reminder notice.
- (5) If AFMA cancels a person's registration as an eligible person, AFMA must amend its records accordingly.

Note 1 AFMA must grant a statutory fishing right to a person to whom the grant of the right is available if the person asks AFMA to grant the right: see section 31 of the Act.

Note 2 A decision under section 31 of the Act (other than a decision following an auction, tender or ballot) is subject to reconsideration under section 165 of the Act: see subsection 165 (2). Application may be made to the Administrative Review Tribunal for review of a decision under section 165 of the Act: see subsection 165 (7).

Note 3 A statutory fishing right ceases to have effect if AFMA revokes this Management Plan: see subsections 20 (4) and 22 (3) of the Act.

Note 4 AFMA must register all statutory fishing rights granted: see section 45 of the Act.

19 Certificate showing grant (Act s 22 (2))

- (1) AFMA must note the following details on the certificate for a statutory fishing right:
- (a) the name of the person to whom the right is granted;
 - (b) a description of the right;
 - (c) that the right is granted for the fishery;
 - (d) the conditions to which the right is subject.
- (2) A certificate may show the grant of more than 1 statutory fishing right to a person.
- (3) AFMA must give to a person to whom a statutory fishing right is granted an extract of the Register:
- (a) that states the conditions to which the right is subject; and
 - (b) that is signed for AFMA by a person having authority to sign it.

Note 1 Section 45 of the Act provides that AFMA must enter certain information in the Register for each statutory fishing right that it grants, including such particulars as are prescribed. The *Fisheries Management (Heard Island and McDonald Islands Fishery)*

Regulations 2002 prescribe details that must be entered in the Register in relation to a nominated boat.

Note 2 Divisions 4.1 and 4.2 provided for the registration of eligible persons and the grant to them of statutory fishing rights in the fishery. That process is now complete. AFMA has granted 30 000 statutory fishing rights for the taking of each quota species mentioned in Schedule 2 and does not intend to grant any further statutory fishing rights for the taking of those species in the fishery.

Division 4.3 Additional target species

20 Declaration of additional target species

- (1) Subject to subsection (2), AFMA may, by notice published in the *Gazette*, declare that a species mentioned in Schedule 3 is a target species.
- (2) Before making a declaration, AFMA must:
 - (a) consult, and consider the views of, CCAMLR, the MAC and the RAG; and
 - (b) assess the stock of the species in the area of the fishery, and be satisfied that the species can be harvested in a sustainable manner.

21 Conditions for registration — additional target species (Act s 26)

- (1) Subsection (2) applies if AFMA publishes a notice, under section 24 of the Act, declaring that AFMA intends to grant statutory fishing rights for a species mentioned in Schedule 3.
- (2) The condition for registration as an eligible person for the grant of statutory fishing rights for the species mentioned in the notice is that the person owns a statutory fishing right, or statutory fishing rights, for an existing target species.

Note 1 See section 24 of the Act about publication of a notice by AFMA declaring that AFMA intends to grant statutory fishing rights for fishing in a managed fishery.

Note 2 An application for registration as an eligible person for the grant of a statutory fishing right must be made within the period stated in a notice published under section 24 of the Act: see paragraph 25 (f), and subsection 26 (1), of the Act.

Note 3 Under subsection 26 (2) of the Act, AFMA must register as an eligible person an applicant for registration who meets the conditions for registration and who has paid the prescribed fee (if any). At present there is no prescribed fee.

Note 4 A decision under subsection 26 (2) of the Act is subject to reconsideration under section 165 of the Act: see subsection 165 (2). Application may be made to the Administrative Review Tribunal for review of a decision under section 165 of the Act: see subsection 165 (7).

22 Provisional grants — additional target species (Act s 23)

- (1) If AFMA makes a declaration under section 20 in relation to a species, AFMA must make a provisional grant, of the number of statutory fishing rights for that species worked out in accordance with subsections (2) and (3), to each person who owns statutory fishing rights for an existing target species when AFMA makes the declaration.
- (2) The total number of statutory fishing rights granted under this section for a species must equal the average of the total number of statutory fishing rights owned for each existing target species when AFMA makes the declaration.
- (3) The statutory fishing rights for the additional target species must be allocated to each person who owns statutory fishing rights for an existing target species in proportion to the total number of statutory fishing rights that the person owns when AFMA makes the declaration.

23 Request for grant — additional target species (Act s 31)

If AFMA makes a provisional grant of a statutory fishing right to a person under subsection 22 (1), section 18 applies to the right as if it were a right for a target species mentioned in Schedule 2.

Division 4.4 Nomination of boat

24 Nomination of boat

AFMA must not register a boat as the nominated boat for a person if:

- (a) the boat does not meet the requirements for an Australian boat, within the meaning given by subsection 4 (1) of the Act; or
- (b) a nominated surveyor has not conducted a safety assessment of the boat and has not issued a statement of compliance indicating that the boat passed the safety assessment.

Part 5

Fishing in the fishery

Division 5.1

Obligations of holders of statutory fishing rights

28 Environmental requirements

- (1) It is a condition of a statutory fishing right that the holder must, while in the area of the fishery:
 - (a) take all reasonable steps to avoid losing any gear or other non-biodegradable items from the boat; and
 - (b) tell AFMA, in writing, about any loss of gear or other non-biodegradable item within 48 hours after the loss (including details of the quantity and description of the lost item, the time, date and position at which it was lost, and the circumstances surrounding the loss); and
 - (c) ensure that no poultry products (including eggs or egg shells) or brassicas (for example, broccoli, cabbage, cauliflower, brussels sprouts or kale) are discharged from the boat; and
 - (d) subject to subsection (4) and any conditions attached to the statutory fishing right, ensure that no offal or bycatch is discharged from the boat; and
 - (e) subject to subsection (5), ensure that no fish meal is discharged from the boat; and
 - (f) ensure that the amount of light showing from the boat does not exceed the amount necessary for the safe operation of the boat; and
 - (g) take all reasonable steps to minimise the risk and severity of collision with sea birds and marine mammals, and comply with any reasonable direction of an observer to minimise such risk; and
 - (h) if asked to do so by AFMA, and if possible, take the carcass, or any parts of the carcass, of a sea bird or marine mammal killed in an incident involving the boat to a place nominated by AFMA; and
 - (i) ensure that, if possible, plastic packing bands are not used to secure items on board the boat, unless the bands are an essential part of the boat's gear; and
 - (j) if items secured by plastic packing bands are brought on board the boat, and those bands are removed, ensure that:
 - (i) they are cut so that they do not form a continuous loop; and
 - (ii) they are incinerated at the earliest opportunity; and
 - (iii) any plastic residue from the incinerator is stored on board the boat and disposed of on reaching port.

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- (2) It is also a condition of a statutory fishing right that the holder must not, while in the area of the fishery, target species of marine life other than target species.
 - (3) For paragraph (1) (b), the holder is not taken to have complied with the paragraph unless AFMA has replied, in writing, saying that the holder's transmission has been fully received and is legible.
 - (4) If, because of a mechanical breakdown of the meal plant, it is not practicable to retain all offal and bycatch on board the boat, the holder:
 - (a) may discharge offal or bycatch from the boat; and
 - (b) must:
 - (i) tell AFMA, in writing, about the breakdown and discharge of offal within 48 hours after it becomes necessary to discharge offal; and
 - (ii) take all reasonable steps that are necessary to ensure that birds and mammals are not attracted to the boat during discharge; and
 - (iii) comply with regulations made for the purpose of this subsection; and
 - (c) must, if he or she can practicably do so, discharge the offal or bycatch whole, and at night.
 - (5) If a batch of fish meal contains more than 10.5% moisture or the holder reasonably believes that there is a risk that the batch will spontaneously ignite, the holder:
 - (a) may discharge the batch of meal, but not the container in which it is stored, from the boat; and
 - (b) must comply with regulations made for the purpose of this subsection.

30 Other obligations of holders of statutory fishing rights

It is a condition of a statutory fishing right that the holder must:

- (a) comply with this Management Plan, and any Regulations made for the purposes of this Management Plan; and
- (c) take reasonable measures to ensure that the following are kept to a minimum:
 - (i) the catch of target species not taken in accordance with this Management Plan;
 - (ii) the incidental catch of species other than target species;
 - (iii) the impact of fishing operations on the marine environment; and
- (d) comply with the fisheries assessment plan developed under section 9; and
- (f) if AFMA asks the holder to give AFMA reasonable access to biological, economic or technical information, or biological samples

that are available to the holder — give AFMA reasonable access to the information or samples; and

Note 1 Other conditions of a statutory fishing right are set out on the certificate for the right. These include bycatch limits, reporting requirements and conditions regarding AFMA's vessel monitoring system. As new monitoring technologies are developed, the conditions may also include conditions regarding the use of those technologies.

Note 2 The holder of a statutory fishing right must also comply with relevant regulations, including the *Fisheries Management Regulations 2019*, the *Fisheries Management (Heard Island and McDonald Islands Fishery) Regulations 2002* and the annual Levy Regulations.

Note 3 See section 42 of the Act about logbook requirements. If the holder of a statutory fishing right breaches the requirements, the holder could be issued with an infringement notice under the Regulatory Powers Act (as applied by section 98A of the *Fisheries Management Act 1991*) or the right could be suspended.

Note 4 See also subsections 22 (3), (4) and (5) of the Act for other conditions to which a statutory fishing right is subject.

Note 5 See section 38 of the Act about AFMA's power to suspend a statutory fishing right if it has reasonable grounds to believe that there has been a contravention of a condition of the right.

Part 6 Miscellaneous

32 Certificates

- (1) If a certificate issued by AFMA for a statutory fishing right is lost, stolen, destroyed or is otherwise not available to the owner of the right, the owner may ask AFMA, in writing, to give to the owner a replacement certificate.
- (2) The request must include:
 - (a) a statement explaining why the certificate is unavailable; and
 - (b) an agreement that the owner will surrender it to AFMA if it becomes available.

33 Delegation

AFMA may, by writing under its common seal, delegate to an employee of AFMA any of its powers or functions under this Management Plan, except its powers under section 11 and this section.

Note See subsection 17 (11) of the Act about the delegation of powers under section 11.

34 Agents

- (1) If the holder of a statutory fishing right appoints a person to be the holder's agent for a matter to which this Management Plan applies, the holder must give AFMA a notice that states:
 - (a) the name of the agent; and
 - (b) the powers that may be exercised by the agent.
- (2) A notice must be accompanied by the instrument, or a certified copy of the instrument, by which the holder appointed the agent.
- (3) For this Management Plan, the appointment of an agent by the holder of a statutory fishing right is of no effect unless AFMA has been told about the appointment under subsection (1).
- (4) In deciding an application under this Management Plan:
 - (a) AFMA may assume that a notice given under this section is properly given; and
 - (b) AFMA need not verify, by other means, the authority of the agent to make the application.

35 Notices

- (1) In this section:
residential, office, postal or e-mail address, or *facsimile number*, for the holder of a statutory fishing right, means the holder's residential, office, postal or e-mail address, or facsimile number, stated in the Register.
notice means a notice that is required, or allowed, by this Management Plan to be given in writing.
- (2) A notice to the holder of a statutory fishing right is taken to be given to the holder if it is:
- (a) delivered to the holder's residential or office address; or
 - (b) posted to the holder's postal address; or
 - (c) sent by facsimile to the holder's facsimile number; or
 - (d) sent by e-mail to the holder's e-mail address.
- (3) A notice to AFMA must be addressed to the Manager, Licensing and Quota Management, Australian Fisheries Management Authority, and:
- (a) delivered to the reception desk at:
Level 6
73 Northbourne Avenue
Canberra ACT; or
 - (b) posted to:
PO Box 7051
Canberra Business Centre
ACT 2610; or
 - (c) sent by fax (from within Australia) to:
(02) 6225 5426; or
 - (d) sent by fax (from outside Australia) to:
612 6225 5426; or
 - (e) sent by e-mail to:
licensing@afma.gov.au; or
 - (f) delivered, posted or sent by fax or e-mail to another office address, postal address or facsimile number notified by AFMA by notice published in a newspaper circulating in the State or Territory in which the address or facsimile receiver is located.
- (4) A notice to a person is taken to have been given to the person if it is delivered, or sent by fax or e-mail, to the person's last known address.
- (5) A notice given to the holder of a statutory fishing right under this section is taken to have been given to the holder:
- (a) if the notice is delivered to the holder's residential or office address — on the day when it is delivered; and

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- (b) if the notice is sent by facsimile to the holder's facsimile number:
 - (i) on a working day between 9 am and 4 pm — 1 hour after the notice is sent; and
 - (ii) otherwise — at 9 am on the next working day after the day when the notice is sent.

Note Under subsection 160 (1) of the *Evidence Act 1995*, it is presumed (unless evidence is sufficient to raise doubt about the presumption is adduced) that a postal article sent by pre-paid post addressed to a person at a specified address in Australia or in an external Territory was received at that address on the fourth working day after having been posted.

- (6) In this section:

working day means a day that is not:

- (a) a Saturday or Sunday; or
- (b) a public holiday or a bank holiday in the place to which the notice is sent.

Part 7 Transitional

36 Transitional

- (1) This section ceases to have effect on the day specified in a notice published in the *Gazette* under subsection (2).
- (2) When the first statutory fishing rights granted under this Management Plan come into effect, AFMA must publish a notice in the *Gazette* stating that this section ceases to have effect on a day specified in the notice.
- (3) The day specified in a notice under subsection (2) must not be earlier than the day on which the notice is published.
- (4) Despite section 12, a person may engage in fishing in the area of the fishery if the person holds a fishing permit that is in force.
- (5) This Management Plan does not affect a fishing permit, or a condition to which the permit is subject.
- (6) This Management Plan does not prevent AFMA from granting or transferring a fishing permit.

Schedule 1 Area of the fishery

(section 3)

That part of the AFZ contained within the area bounded by a line beginning at 53° 14' 07" S, 60° 00' 00" E and running progressively:

- east along the parallel that passes through that point to its intersection with the meridian 67° 03' 20" E;
- north-easterly along the geodesic to 52° 42' 28" S, 68° 05' 31" E;
- north-easterly along the geodesic to 51° 58' 18" S, 69° 44' 02" E;
- north-easterly along the geodesic to 51° 24' 32" S, 71° 12' 29" E;
- north-easterly along the geodesic to 51° 03' 09" S, 72° 28' 28" E;
- north-easterly along the geodesic to 50° 54' 23" S, 72° 49' 21" E;
- north-easterly along the geodesic to 49° 49' 34" S, 75° 36' 08" E;
- north-easterly along the geodesic to 49° 24' 07" S, 76° 42' 17" E;
- east along the parallel that passes through that point to its intersection with the meridian 80° 00' 00" E;
- south along that meridian to its intersection with the parallel 56° 00' 00" S;
- west along that parallel to its intersection with the meridian 60° 00' 00" E;
- north along that meridian to the point of commencement.

Note Fishing in the waters within 12 nautical miles of either Heard Island or the McDonald Islands, except in accordance with a permit under section 15 of the *Environment Protection and Management Ordinance 1987* of the Territory of Heard Island and McDonald Islands, is prohibited by section 14 of that Ordinance. Paragraph 6.12 of the Heard Island Reserve Management Plan, made under section 8 of the Ordinance, states that permits will not be issued for fishing activity within those waters. Fishing in other waters within the area of the fishery may be prohibited by a direction.

Schedule 2 Target species

(section 3)

Item	Common name	Scientific name
1	Patagonian toothfish	<i>Dissostichus eleginoides</i>
2	Mackerel icefish	<i>Champsocephalus gunnari</i>

Schedule 3 Additional target species subject to declaration by AFMA

(sections 3 and 20)

Item	Common name	Scientific name
1	Grey rockcod	<i>Lepidonotothen squamifrons</i>
2	Unicorn icefish	<i>Channichthys rhinoceros</i>
3	Rat tails or Grenadiers	<i>Macrourus</i> spp.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnotes

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	FRLI registration or gazettal	Commencement	Application, saving and transitional provisions
Heard Island and McDonald Islands Fishery Management Plan 2002	29 May 2002	29 May 2002 and gaz 2002, No. GN21	
Heard Island and McDonald Islands Fishery Management Plan Amendment 2004 (No. 1)	23 Nov 2004	23 Nov 2004 and gaz 2004, No. S469	—
Heard Island and McDonald Islands Fishery Management Plan Amendment 2006 (No. 1)	24 May 2006 (F2006L01608)	25 May 2006 (s 2)	—
Fisheries Legislation (Management Plans) Amendment 2011 (No. 1)	19 Dec 2011 (F2011L02746)	Sch 4 (items 1–20): 20 Dec 2011	—
Heard Island and McDonald Islands Fishery Management Plan Amendment 2011	22 Feb 2012 (F2012L00372)	23 Feb 2012 (s 2)	—
Fisheries Management Plan Amendment 2016	3 May 2016 (F2016L00627)	Sch 1 (item 3): 4 May 2016 (s 2)	—
Fisheries Management Legislation Amendment (Minor Updates to Management Plans) Instrument 2024	16 Sept 2024 (F2024L01167)	Sch 1 (items 7–13): 14 Oct 2024 (s 2(1))	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
S. 2	rep LA s 48D
S. 3	am. 2011 No. 1; F2012L00372; F2024L01167
S. 4	am. F2012L00372
S. 6	am. 2011 No. 1; F2012L00372
S. 7	am. F2012L00372
S. 8	am. F2012L00372
Note to s. 8 (3)	rep. 2011 No. 1
S. 9	am. 2006 No. 1; F2012L00372
Part 2	
S. 11	am. 2006 No. 1; F2012L00372
S. 11A	ad. F2012L00372
Part 3	
S. 12	rs. F2012L00372
S. 13	am. F2012L00372
S. 14	am. 2006 No. 1
Part 4	
Division 4.1	
s 16	am F2024L01167
Note 4 to s 16(3)	am F2024L01167
Division 4.2	
Note 2 to s 18(5)	am F2024L01167
Note to s. 19	rep. 2006 No. 1
Notes 1 and 2 to s. 19	ad. 2006 No. 1
Division 4.3	
S. 20	am. F2012L00372
Note 4 to s 21(2)	am F2024L01167
S. 22	am. 2004 No. 1
Division 4.4	
S. 24	rs. 2011 No. 1; F2012L00372
Div. 4.5 of Part 4	rep. 2011 No. 1
S. 25	rep. 2011 No. 1
S. 26	rep. 2011 No. 1
S. 27	rep. 2011 No. 1
Part 5	
Division 5.1	
S. 29	rep. 2011 No. 1

Endnote 4—Amendment history

Provision affected	How affected
S. 30	am. 2011 No. 1; F2016L00627
Note 2 to s 30.....	am F2024L01167
Note 3 to s 30.....	am F2024L01167
Div. 5.2 of Part 5	rep. 2011 No. 1
S. 31	am. 2006 No. 1
	rep. 2011 No. 1
Part 6	
S. 33	am. 2011 No. 1
Note to s. 33.....	am. 2011 No. 1
S. 35	am. 2011 No. 1
Schedule 1	
Schedule 1.....	am. 2004 No. 1
Note to Schedule 1	am. 2011 No. 1